

Tentative Rulings
June 22, 2026
Department 44
2:30 p.m.

*****IMPORTANT – PLEASE READ*****

The Tentative Rulings below are designed to eliminate unnecessary court appearances. If the Court grants a Petition and signs your order, it will be processed and placed in your will-call or deposited in the mail after Monday's calendar. If you wish to appear on your case, telephonic appearances are strongly encouraged utilizing CourtCall. Please schedule your appearance online for Department 44 at Courtcall.com or by calling 888-882-6878 (See CourtCall link under "General Information" on the Court's website).

CONSERVATORSHIPS

CONSERVATORSHIP OF IRENE COLEY

CASE NUMBER: 25PC-0033113

This matter is on calendar for hearing on a Petition for Order Authorizing Surrender of Life Insurance Policy. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The Court notes the future date of July 27, 2026, for confirmation of filing the Inventory and Appraisal. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF KAREN HAMBEK

CASE NUMBER: 25PC-0033149

This matter is on calendar for confirmation of filing the Proof of Service of the Conservatorship Care Plan 1 and Notice of Filing of Inventory and Appraisal. Based on the declaration filed on June 9, 2026, the Court will dispense with notice to Mary Hambek of the Conservatorship Care Plan 1. Proof of service of the Notice of Filing of Inventory and Appraisal has not been filed. The matter is continued to **Monday, July 27, 2026, at 2:30 p.m. in Department 44** for confirmation of filing Proof of Service of Notice of Filing of Inventory and Appraisal.

This matter is also on calendar for hearing on a Petition for Waiver of Accountings. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order has been filed with the Court and will be executed. Future Accountings are waived, unless the requirements of Probate Code §§ 2628(b) or (c) are met. The future date of June 14, 2027, for confirmation of filing the First Account is vacated. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF HALEY JOHNSTON

CASE NUMBER: 26PC-0033360

This matter is on calendar for further proceedings on a Petition for Appointment of a Limited Conservator of the Person. The Court previously determined all paperwork appeared to be in order, with

the exception that the report of the assessment from Far Northern Regional Center had not been filed as required by Probate Code Section 1827.5. The report of the assessment has still not been filed. The matter is continued **to Monday, July 27, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Appointment of a Limited Conservator of the Person. The report of the assessment from Far Northern Regional Center is required to be filed. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF SHELBY LONG

CASE NUMBER: 23PC-0032081

This matter is on calendar for confirmation of filing the Inventory and Appraisal and Annual Status Review. This matter is also on calendar for hearing on an Order to Show Cause Re: Monetary Sanctions issued to the Conservators for failure to timely file the Inventory and Appraisal and Annual Review and failure to appear on May 11, 2026. No Inventory and Appraisal has been filed. A Final Accounting and Declaration in Support of Termination of the Estate Conservatorship was previously filed; however, no Notice of Hearing has been filed and served. At the last hearing, the Court temporarily suspended the conservators power of the estate pending further order of the Court. Prior sanctions have been unsuccessful in gaining the Conservators compliance with the Court's orders. **An appearance is necessary on today's calendar. Warning: Failure to appear on today's calendar will result in the issuance of both monetary sanctions in the sum of \$500.00, and an Order to Show Cause re: Termination of Conservatorship of the Estate.**

CONSERVATORSHIP OF DANIEL MOSIER

CASE NUMBER: 23PC-0032093

This matter is on calendar for further proceedings on the First and Final Account and Report of Temporary Conservator, Allowance of Fees, and Discharge of Temporary Conservator. The matter has not been properly noticed. There is no valid proof of service of the Notice of Hearing and First and Final Account and Report for any parties entitled to notice. The proof of service filed on May 22, 2026, is incomplete as to items 2, 3, 4a, 4b and 5. Additionally, Petitioner served the documents himself. The documents must be served by someone over the age of 18 who is not a party to the action. The Court notes there is no proof of service for the Conservatee or Counsel for the Conservatee. Additionally, Christine is represented by Counsel and there is no proof of service for Swanson Law Office. The proofs of personal service for Michele, Christine, Swanson Law Office, and the Public Guardian filed on June 11, 2026, indicate service was untimely and fails to state a copy of the First Account and Report was served. A Status Report was filed on June 8, 2026, acknowledging that service was untimely. **An appearance is necessary on today's calendar by all parties to discuss status of service of the First and Final Account and Report of Temporary Conservator.**

CONSERVATORSHIP OF ANN O'BRIEN

CASE NUMBER: 24PC-0032296

This matter is on calendar for confirmation of filing the First Account and Report of Conservator. The First Account and Report of Conservator has not been filed. No Status Report has been filed as ordered on May 4, 2026. The Court notes this matter has been continued five times and it has been over eleven months since the First Account and Report was to be filed. **An appearance is necessary on today's calendar to discuss status of filing the First Account and Report of Conservator.**

CONSERVATORSHIP OF VICKY SERPA

CASE NUMBER: 26PC-0033394

This matter is on calendar for hearing on a Petition for Appointment of a Conservator of the Person and Estate. The Court dispenses with notice to the Conservatee's sons, Matthew and Damion. Based on the Court Investigator's report filed on June 10, 2026, the Court will find the Conservatee's sister, Karen, to have notice. The matter has been properly noticed. The Citation has been filed with proper proof of service. Counsel has been appointed for the Conservatee. The Court has reviewed the Court Investigator's report which recommends granting the Petition. The report states that the Conservatee will attend the hearing and objects to the Petition. A Duties of Conservator (form GC-348) has not been filed and must be filed before letters will issue. **An appearance is necessary on today's calendar to discuss status of the Conservatee's objection.**

CONSERVATORSHIP OF CHRISTINA SHAW

CASE NUMBER: 25PC-0033197

This matter is on calendar for confirmation of filing the Conservatorship Care Plan, Proof of Service of Notice of Conservatee's Rights, Inventory and Appraisal, and Proof of Service of Notice of Filing of the Inventory and Appraisal. None of the required documents have been filed. No Status Report has been filed as ordered on May 11, 2026. The Court notes proof of a bond has not been submitted, therefore letters of have not issued. The matter is continued to **Monday, July 20, 2026, at 2:30 p.m. in Department 44** for confirmation of filing the Conservatorship Care Plan, Proof of Service of Notice of Conservatee's Rights, Inventory and Appraisal, and Proof of Service of Notice of Filing of the Inventory and Appraisal. If the documents cannot be filed prior to the continued hearing, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before all documents can be filed. Failure to file either the Conservatorship Care Plan, Proof of Service of Notice of Conservatee's Rights, Inventory and Appraisal, and Proof of Service of the Notice of Filing of the Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file the documents and failure to comply with the Court's order. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF SILVIA STEELE

CASE NUMBER: CVPG19-0030261

This matter is on calendar for confirmation of a provisional order from Oregon accepting transfer. A provisional order from Oregon accepting transfer has been submitted. A Final Order Confirming Transfer has been lodged and will be executed. Upon processing the order, the clerk is directed to close the file. **No appearance is necessary on today's calendar.**

ESTATES

ESTATE OF LORRAINE AMES

CASE NUMBER: 23PB-0032059

This matter is on calendar for hearing on the Third Amended Waiver of Account and Report of Administrator and Petition for Final Distribution. The matter has been properly noticed with proof of service on file. No objections have been raised. The Petition fails to address the issues raised on April 27, 2026.

The Petition states that Robin, Jeffrey, and Jenise are the people entitled to distribution of the estate; however, Jeffery and Jenise previously filed disclaimers. The legal effect of a disclaimer is that the heir is treated as if they pre-deceased the decedent. Probate Code Section 282. The intestate heirs of Jeffrey and Jenise are entitled to notice and distribution. The Court notes the Petition states distribution should be made to Robin and Olivia. However, the intestate heirs of Jeffrey and Jenise have still not been identified therefore it is unclear whether the proposed distribution comports with the laws of intestate succession. The requirement of an accounting has not been properly waived. The Court notes a, objection and declaration were filed by Olivia Sullivan on June 15, 2026, which includes an email that Ms. Sullivan is not waiving the requirement of an accounting and identifies that the Personal Representative/beneficiary has been occupying the estate residence, thus additional information is required regarding whether the estate has been compensation for the fair rental value during the occupation. The Petition has not been verified as required by California Rule of Court 7.103.

The matter is continued to **Monday, July 27, 2026, at 2:30 p.m. in Department 44** for further proceedings regarding the Petition for Final Distribution and Order to Show Cause. A fourth amended Petition is required to be filed to address the issues raised above. Petitioner is required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the fourth amended Petition, on all parties entitled to notice. **No appearance is necessary on today's calendar.**

ESTATE OF PATRICK ARMITAGE

CASE NUMBER: 22PB-0031761

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed as ordered on March 23, 2026. The Court notes the Status Report filed on March 6, 2026, requesting an additional 6 months to resolve a wrongful foreclosure issue. The matter is continued to **Monday, December 21, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the December 21, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF JANICE CHAPMAN KLADT

CASE NUMBER: 24PB-0032350

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed as ordered on April 27, 2026. The Court notes a Notice of Hearing was filed and properly served, however no associated Status Report was filed. The matter is continued to **Monday, September 21, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal

Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the September 21, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF JOSEPHINE CLINE

CASE NUMBER: CVPB17-0029336

This matter is on calendar for Status of Administration. No Petition for Distribution has been filed. A Status Report has been filed; however, the proof of service fails to indicate a copy of the Status Report was served. The matter is continued to **Monday, December 21, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution noticed for a different date, the Court will vacate the December 21, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF RONALD COLLISTER

CASE NUMBER: 22PB-0031518

This matter is on calendar for Status of Administration. No Petition for Distribution has been filed. A Status Report has been filed; however, the proof of service fails to state the date of service. The matter is continued to **Monday, September 28, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution noticed for a different date, the Court will vacate the September 28, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF MARIE DANNER

CASE NUMBER: 25PB-0033116

This matter is on calendar for further proceedings on a Petition for Letters of Administration. The matter has been properly noticed with proof of service on file. No objections have been raised. The amended Petition states the decedent was not survived by a spouse, therefore the Court will find the issue regarding item 8 resolved. Proof of publication was previously filed. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The requirement of a bond has been properly waived, and letters shall issue. The Court notes proposed orders have not been lodged. The matter is set for **Monday, October 19, 2026, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, June 21, 2027, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code Section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF SHIRLEY DESNOYER

CASE NUMBER: 25PB-0033028

This matter is on calendar to confirm the filing of Receipts and a Petition for Final Discharge. Some receipts have been filed. No Petition for Final Discharge has been submitted. The matter is continued to **Monday, July 27, 2026, at 2:30 p.m. in Department 44** to confirm filing of Receipts and a Petition for Final Discharge. If the documents cannot be filed prior to the next hearing, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing date to advise what must be accomplished before the documents can be filed. **No appearance is necessary on today's calendar.**

ESTATE OF CAROLINE DIESTEL

CASE NUMBER: 23PB-0031982

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed as ordered on December 9, 2024. The matter is continued to **Monday, September 21, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the September 21, 2026, date. The clerk is directed to mail a copy of today's minute order to the Personal Representative and Counsel. **No appearance is necessary on today's calendar.**

ESTATE OF JEFFERY GAYLORD

CASE NUMBER: 25PB-0033078

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Inventory and Appraisal has not been filed. No Status Report has been filed as ordered on March 23, 2026, and May 11, 2026. This matter is continued to **Monday, August 10, 2026, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of December 28, 2026, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF EVELYN GREENFIELD

CASE NUMBER: 24PB-0032325

This matter is on calendar for further proceedings on the Waiver of Account, Report of Personal Representative, and Petition for Final Distribution. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition for Final Distribution is **GRANTED**. A proposed Order has not been lodged as required by Local Rule 15.06. Petitioner shall prepare the Order. This matter is set for **Monday, July 27, 2026, at 2:30 p.m. in Department 44** to confirm the filing of an Order on the Waiver of Account, Report of Personal Representative, and Petition for Final Distribution and confirmation of filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF PHILIP HIMAN

CASE NUMBER: 25PB-0032852

This matter is on calendar to confirm the filing of Receipts and a Petition for Final Discharge. All receipts have been filed. However, no Petition for Final Discharge has been submitted. The matter is continued to **Monday, July 13, 2026, at 2:30 p.m. in Department 44** to confirm filing of the Petition for Final Discharge. If a Petition for Final Discharge cannot be filed prior to the next hearing, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing date to advise what must be accomplished before the Petition for Final Discharge can be filed. **No appearance is necessary on today's calendar.**

ESTATE OF BRIAN HINES

CASE NUMBER: 26PB-0033391

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has not been properly noticed. The proof of service filed on June 15, 2026, indicates service was untimely. Notice must be served at least 15 days before the hearing date. Probate Code Section 8110. The Petition contains the following defects:

1. Item 1 is incomplete as to the name of the newspaper for publication.
2. Item 3(a)(2) should be the address of the property left by decedent in this state.
3. Item 5(a) 3 or 4 must be completed.
4. Item 5(a) 5a or 5b must be completed.

No proof of publication has been filed. The matter is continued to **Monday, July 27, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Letters of Administration. An amended Petition is required to be filed to address the issues raised above. Petitioner is required to file and serve a new Notice of Petition to Administer Estate for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. Proof of publication is required to be filed. **No appearance is necessary on today's calendar.**

ESTATE OF PATRICIA JOLLEY

CASE NUMBER: 26PB-0033395

This matter is on calendar for hearing on a Petition for Letters of Administration. The Petition is incomplete as no relationship to the decedent has been listed for each individual as required in item 8. Due to the defect, the Court is unable to determine if the matter has been properly noticed or requirement of a bond properly waived. No proof of publication has been filed. The matter is continued to **Monday, July 27, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Letters of Administration. An amended Petition is required to be filed to address the issues raised above. Petitioner is required to file and serve a new Notice of Petition to Administer Estate for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. Proof of publication is required to be filed. **No appearance is necessary on today's calendar.**

ESTATE OF EDITH KATZ

CASE NUMBER: CVPB14-0027926

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. A Status Report has been filed; however, the proof of service fails to indicate Lorraine Blalock was served pursuant to the Request for Special Notice filed on September 2, 2025. The Personal Representative is **ORDERED** to serve a copy of the Status Report on Lorraine Blalock and file proof of service with the court. The matter is continued to **Monday, September 28, 2026, at 2:30 p.m. in Department 44** for

Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution noticed for a different date, the Court will vacate the September 28, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF REX KLEIN

CASE NUMBER: 25PB-0032908

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Inventory and Appraisal has not been filed. The Personal Representative has filed a Status Report stating that additional time is needed before the Final Inventory and Appraisal can be filed. This matter is continued to **Monday, August 17, 2026, at 2:30 p.m. in Department 44** for confirmation of filing the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of August 17, 2026, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF TIMOTHY KOBE

CASE NUMBER: 26PB-0033352

This matter is on calendar for further proceedings on a Petition for Probate of Will. The matter has been properly noticed with proof of service on file. No objections have been raised. Proof of proper publication has been filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The Will is admitted to probate, and the original will shall be filed. Letters will issue upon confirmation of issuance of a bond in the amount of \$150,000.00. The matter is set for **Monday, October 26, 2026, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, June 21, 2027, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code Section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF JOSEPH MICHIELS

CASE NUMBER: 25PB-0032988

This matter is on calendar for confirmation of filing the Inventory and Appraisal. This matter is also on calendar for Status of Administration pursuant to a Status Report filed on June 16, 2026. The Inventory and Appraisal has not been filed. A Status Report has been filed which indicates additional time is needed before the Inventory and Appraisal can be filed. This matter is continued to **Monday, August 24, 2026, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and

failure to comply with the Court's order. The Court notes the future date of August 24, 2026, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF CHASTITY MILENEWICZ

CASE NUMBER: 25PB-0033074

This matter is on calendar for further proceedings on a Petition for Probate of Will filed by the Public Administrator. Proof of proper publication was previously filed. Jesse Penta previously filed an objection. This matter is also on calendar for hearing on a competing Petition for Probate of Will filed by Melissa Folsom. Proof of proper publication has not been filed. No Duties and Liabilities of Personal Representative (DE-147) has been filed. The Court notes neither Petition has been properly noticed. The will purports to distribute the estate to the trustee of the Milenewicz-Penta Revocable Living Trust; however, a successor Trustee has not yet been appointed and provided notice of the proceedings. The matter is continued to **Monday, July 27, 2026, at 2:30 p.m. in Department 44** for further proceedings on both Petitions for Probate of Will. Proper proof of publication and form DE-147 are required to be filed by Petitioner Melissa Folsom. **No appearance is necessary on today's calendar.**

ESTATE OF ANTHONY PENTA

CASE NUMBER: 26PB-0033379

This matter is on calendar for further proceedings on a Petition for Letters of Administration. An amended Petition was filed on June 16, 2026, but fails to address the requirement of a bond until items 2d and 3e. As the Petition indicates the estate has an estimated zero value and Petitioner is the sole heir of the decedent, the defect may be overlooked. A new Notice of Petition to Administer Estate has been filed. While notice was not timely, Petitioner is the sole heir of the estate thus no further service is required. Duties and Liabilities of Personal Representative has been filed. Proof of publication has not been filed. The matter is continued to **Monday, July 27, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Proof of proper publication is required to be filed. **No appearance is necessary on today's calendar.**

ESTATE OF JAMES PHELPS

CASE NUMBER: 24PB-0032705

This matter is on calendar for confirmation of receipt of an Order on the Petition for Final Distribution and a Petition for Final Discharge. A proposed Order on the Petition for Final Distribution has been submitted and will be executed by the Court. All receipts have been filed. A Petition for Final Discharge has been submitted and will be executed by the Court. The clerk is directed to close the file upon processing of the orders. **No appearance is necessary on today's calendar.**

ESTATE OF TERESA ROTH-BURTON

CASE NUMBER: 25PB-0033183

This matter is on calendar for further proceedings on a second amended Petition for Probate of Lost Will. The Court previously found the matter to be properly noticed with proof of service on file. An objection was filed by Daniel Burton. The Court notes Mr. Burton has not filed a competing Petition to be appointed as administrator of the estate. The original will has been lodged. The matter has been continued several times to allow Petitioner an opportunity to file proper proof of publication to address the issues previously raised on April 6, 2026. The proof of publication filed on March 16, 2026, fails to state that the Petition requests the decedent's will be admitted to probate. No further documents have been filed to address proper proof of publication. In light of Petitioner's failure to file the documents

necessary to move forward, the Petition is **DENIED** without prejudice. The clerk is directed to close the file. **No appearance is necessary on today's calendar.**

ESTATE OF DIANE RUPPERT

CASE NUMBER: 25PB-0033170

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Inventory and Appraisal has not been filed. No Status Report has been filed as ordered on May 18, 2026. This matter is continued to **Monday, August 10, 2026, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of January 11, 2027, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF KEITH SHANNON

CASE NUMBER: 26PB-0033336

This matter is on calendar for further proceedings on a Petition for Letters of Administration. The matter has been properly noticed with proof of service on file. Proper proof of publication was previously filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The requirement of a bond has been properly waived, and letters shall issue. The matter is set for **Monday, October 19, 2026, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, June 21, 2027, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code Section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF CLEO SMITH

CASE NUMBER: 26PB-0033328

This matter is on calendar for hearing on an amended Petition for Letters of Administration. The matter has been properly noticed with proof of service on file. Proper proof of publication was previously filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The Petitioner is an exempt government agency and therefore a bond is not required. The matter is set for **Monday, October 19, 2026, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, June 21, 2027, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code Section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF DAVID TIDWELL

CASE NUMBER: CVPB16-0028648

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed as ordered on March 23, 2026. The matter is continued to **Monday, August 10, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code

Section 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the August 10, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF DEBORAH UHL-SCIALLO

CASE NUMBER: 26PB-0033280

This matter is on calendar for hearing on an amended Petition to Determine Succession to Primary Residence. The matter has been properly noticed with proof of service on file. No objections have been raised. The amended Petition sufficiently addresses all issues raised on April 6, 2026, despite that a copy of the will, DE-300, and Attachment 11 are not attached. As those items were attached to the original Petition, the defects can be overlooked. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court, however it is incomplete. Petitioner shall prepare and submit a proposed Order with items 1-9 completed. Upon processing of the order, the clerk is directed to close. **No appearance is necessary on today's calendar.**

ESTATE OF KELLY WATERS

CASE NUMBER: 26PB-0033371

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has been properly noticed, with proof of service on file. Proper proof of publication has been filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The requirement of a bond has been properly waived, and letters shall issue. The matter is set for **Monday, October 19, 2026, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, June 21, 2027, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code Section 12200 et seq. **No appearance is necessary on today's calendar.**

TRUSTS

IN RE THE ASHLEY STITES IRREVOCABLE SPECIAL NEEDS TRUST

CASE NUMBER: CVPB12-0027186

This matter is on calendar for hearing on a Petition for Order Authorizing Release of Blocked Funds and Purchase of Real Property. The matter has not been properly noticed. There is no proof of service of the Notice of Hearing and Petition for the beneficiary, Ashley Stites, or Margarita Vienneau pursuant to the Request for Special Notice filed on December 9, 2025. The Court notes the Petition requests to withdraw a sum that would significantly deplete the subject blocked account, which is a main asset of the trust. No information has been provided to permit the Court to determine if the remaining assets of the trust will be sufficient to provide ongoing maintenance of the real property and accomplish the purpose of the trust. The matter is continued to **Monday, August 3, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Order Authorizing Release of Blocked Funds and Purchase of Real Property. A supplemental declaration is required to be filed to address the issues raised above. Petitioner is required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the Petition and supplemental declaration, on all parties entitled to notice. **No appearance is necessary on today's calendar.**

IN RE: THE DUNGAN FAMILY TRUST DATED DECEMBER 21, 2017

CASE NUMBER: 24PB-0032424

This matter is on calendar for further proceedings on the Petition for Order Compelling Trustee to Account, Compelling Trustee to Provide Trust Information and For Redress of Breach of Trust for Unjust Enrichment. An opposition was previously filed. The parties previously advised the Court that the accounting has been completed. **An appearance is necessary on today's calendar to provide status of the amended Accounting and to discuss whether the matter should be set for a contested hearing.**

IN RE: FERRELL FAMILY TRUST

CASE NUMBER: 26PB-0033383

This matter is on calendar for hearing on a Petition for Order (1) Compelling Trustee to Account; (2) Instructing Trustee to Make Distributions; (3) for Redress of Breach of Trust; (4) for Redress of Breach of Fiduciary Duty; (5) for Surcharge of Trustee; and (6) for Unjust Enrichment. The matter has been properly noticed with proof of service on file. The Successor Trustee, Gail Olmstead, has filed an objection. **An appearance is necessary on today's calendar for setting of a contested hearing.**

IN RE: KENNETH C. DUKE REVOCABLE LIVING TRUST

CASE NUMBER: 25PB-0033104

This matter is on calendar for status of all Petitions. **An appearance is necessary on today's calendar.**

IN RE: MILENEWICZ-PENTA LIVING TRUST

CASE NUMBER: 26PB-0033358

This matter is on calendar for further proceedings on a Petition to Appoint Successor Trustee. This matter is being heard concurrently with case 33074. An amended Petition has not been filed to address the issues raised on June 1, 2026. The verification on page 4 of the Petition is unsigned. Probate Code Section 15660.5 states that the Public Administrator may be appointed as trustee if, among other things, "after reasonable inquiry, no other qualified person is willing to act as trustee." The Petition fails to address whether an inquiry has been made and whether the Trustor's siblings are qualified to act as

trustee. Additionally, Probate Code Section 15660.5 requires that “at the time of appointment and pursuant to the terms of the trust, the entire trust is then to be distributed outright.” Section 9 of the Trust provides that distribution to a minor beneficiary shall either be (1) held in trust for that minor beneficiary, or (2) paid to the parent, custodian, or guardian of that minor beneficiary. The Petition fails to address whether the trust is to be distributed outright or held in trust for the minors. The Court will require a Guardian Ad Litem be appointed for the minor beneficiaries. The matter is continued to **Monday, July 27, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition to Appoint Successor Trustee. An amended Petition is required to be filed to address the issues raised above. Petitioner is also required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. A Guardian Ad Litem is required to be appointed for the minor beneficiaries. **No appearance is necessary on today’s calendar.**